

HOUSE No. 1736

The Commonwealth of Massachusetts

PRESENTED BY:

Danielle W. Gregoire

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to determining capacity and invoking the health care proxy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danielle W. Gregoire</i>	<i>4th Middlesex</i>	<i>1/16/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>7/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>7/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/24/2025</i>

HOUSE No. 1736

By Representative Gregoire of Marlborough, a petition (accompanied by bill, House, No. 1736) of Danielle W. Gregoire relative to health care proxies. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1539 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to determining capacity and invoking the health care proxy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 201D of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out in its entirety the definition of “Attending
3 physician” and inserting in place thereof the following definition:—

4 "Attending health care provider", the physician, nurse practitioner or psychiatric nurse
5 mental health clinical specialist selected by or assigned to a patient, who has primary
6 responsibility for the treatment and care of the patient, in whatever setting medical diagnosis or
7 treatment is rendered. Where more than one physician, nurse practitioner or psychiatric nurse
8 mental health clinical specialist shares such responsibility, any such physician, nurse practitioner
9 or psychiatric nurse mental health clinical specialist may act as the attending health care
10 provider.

SECTION 2. Section 5 of chapter 201D, as so appearing, is hereby amended by inserting after the word “physician”, in line 23, the following:—

, nurse practitioner or psychiatric nurse mental health clinical specialist

SECTION 3. Section 6 of chapter 201D, as so appearing, is hereby amended by striking out the words “attending physician”, in lines 4 through 5, 7, 11, 12 through 13, and 36, each time they appear, and inserting in place thereof the following:—

attending health care provider

SECTION 4. Said section 6 of said chapter 201D is hereby further amended by inserting after the word “physician”, in line 17, the following:—

, nurse practitioner or psychiatric nurse mental health clinical specialist

SECTION 5. Section 7 of chapter 201D, as so appearing, is hereby amended by inserting after the word “physician”, in lines 11 and 14, each time it appears, the following:—

, nurse practitioner or psychiatric nurse mental health clinical specialist

SECTION 6. Said section 7 of said chapter 201D is hereby further amended by striking out the words “attending physician”, in lines 17 through 18, and inserting in place thereof the following:—

attending health care provider

SECTION 7. Section 13 of chapter 201D, as so appearing, is hereby amended by striking out the words “attending physician”, in line 2, and inserting in place thereof the following:—

30 attending health care provider

31 SECTION 8. Section 14 of chapter 201D, as so appearing, is hereby amended by
32 inserting after the word “physician”, in lines 2 through 3, 6, 7, 9, 10, and 13 through 14, each
33 time it appears, the following:—

34 , nurse practitioner or psychiatric nurse mental health clinical specialist